

Shilpa Kumari vs Joy Jeet Dutta on 30 March, 2018

Bench: Jyoti Saran, Chakradhari Sharan Singh

IN THE HIGH COURT OF JUDICATURE AT PATNA
Miscellaneous Appeal No.312 of 2015

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Shilpa Kumari (Shilpa Devi as per judgment under appeal) Daughter of
Animesh Kumar Singh Resident of Navneet Nagar, P.S. - Katihar (Town),
District - Katihar.

... .. Appellant/s

Versus

Joy Jeet Dutta Son of Late Amulya Ratan Dutta Resident of Mohalla - Manik
Sarkar, P.S. - Adampur, District - Bhagalpur.

... .. Respondent/s

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Appearance :
For the Appellant/s : Mr. Sanjay Kumar Mishra
For the Respondent/s : Mr.

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CORAM: HONOURABLE MR. JUSTICE JYOTI SARAN
and
HONOURABLE MR. JUSTICE CHAKRADHARI SHARAN
SINGH
ORAL JUDGMENT
(Per: HONOURABLE MR. JUSTICE CHAKRADHARI SHARAN
SINGH)

Date : 30-03-2018

Heard learned counsel for the appellant.

2. The respondent has not chosen to appear despite
valid service of notice.

3. In the present appeal under Section 19 (1) of the
Family Courts Act, 1984, the appellant is aggrieved by the
judgment and decree, dated 29.06.2015, passed by the learned
Additional Principal Judge, Family Court, Katihar in
Matrimonial Suit No. 415 of 2011, whereby the Court below has
decreed the suit for restitution of conjugal rights under Section 9
of the Hindu Marriage Act, 1955, which was preferred by the

respondent.

4. It transpires from the records that with a plea that the appellant and respondent got married in a Temple at Gaya, the Respondent filed the said Matrimonial Suit No. 415 of 2011, seeking decree for restitution of conjugal rights. Though the factum of marriage between the respondent and the appellant was denied by the appellant before the Court below in her written statement, she at the same time, took a plea that under some influence she had stayed with the respondent.

5. Upon consideration of rival pleadings, the Court below framed altogether six (vi) Issues including Issue No.(iii), which reads as follows:-

"(iii) Whether the respondent Shilpa Devi is the legally wedded wife of the petitioner Joyjeet Dutta and their marriage was solemnized on 1.08.2009

at Bishnupad Mandir, Gaya?

6. The Issue No. (iii) was apparently the core issue for determination of the suit for restitution of conjugal rights. As has already been noticed, the sole plea which the respondent had taken in his plaint in support of his marriage with appellant was ceremonies performed in a Temple at Gaya.

7. From the impugned judgment and decree, it is noticeable that the Court below considered the evidence of Patna High Court MA No.312 of 2015 dt.30-03-2018 witnesses produced by the plaintiff and certain documents to prove valid marriage between the appellant and the respondent. Learned trial Court based on the evidence of solemnization of marriage in the Temple of Bishnupad at Gaya has recorded his finding that the marriage between the appellant and the respondent was validly performed and the respondent being the husband of the appellant was entitled to a decree for restitution of conjugal rights. The Court below accordingly, decreed the suit in favour of the respondent.

8. Learned counsel for the appellant submits that the findings recorded by the Court below holding that there was valid marriage between the appellant and the respondent on the basis of evidence adduced at the trial is perverse. He submits that though the respondent miserably failed to refer to the customary ceremonies, which according to him were performed at the Temple, which could have constituted a valid marriage, the Court below decreed the suit in favour of the respondent.

9. We have perused the evidence and other material on record and we have given our consideration to the submissions advanced on behalf of the parties. The respondent was examined at the trial as P.W.1. He was certainly the best Patna High Court MA No.312 of 2015 dt.30-03-2018 witness to state the ceremonies which were performed in the Temple to prove valid marriage under the Hindu Marriage Act, 1955. From his evidence we do not find any statement explaining the customary ceremonies, which were required to be performed for solemnization of a marriage nor there is any statement as to which ceremonies were in fact performed in the Temple to solemnize the said marriage. The statement of P.W.1 as recorded in paragraphs 49 to 56 are relevant and are being reproduced herein below:-

"49- eafnj ls "kknh dk dkssbZ izek.ki= eq>s ugh fn;k FkkA "kknh esa ;fn vfHkHkkod ugh gks rks lfVZfQdsV ugh fn;k tkrk gSA 50- esjh ekStwnxh esa ml fnu nks rhu "kkfn;ki gks jgh FkhA eq>s irk ugh fd muyksxksa dks izek.ki= fn;k x;k ;k ughA 51- esjh f"kyik ds lkFk eafnj esa "kknh gksus dk eafnj O;oLFkkidksa }kjk fn;k x;k dksbZ izek.ki= eSa ugh ns ldrkA 52- eSa ugh crk ldrk fd esjh "kknh fgUnw fof/k dh fir{k;k;k ;k nk;ek= fdl fof/k ds vuqlkj gqbZ gSA 53- oSfnd jhfr fjokt ls "kknh dh ckr dgh gS] ;g oSfnd jhfr fjokt D;k gS] eSa ugh crk ldrkA 54- ,slh ckr ugh gS fd eSa tSlk dg jgk gW esjh oSlh dksbZ "kknh f"kyik ds lkFk fo'.kqin eafnj esa ugh gqbZA 55- eafnj esa fIQZ eSa ,oa f"kyik FksA iqu% dgrs gS fd fofM;ksxzkQj ,oa QksVksxzkQj FksA 56- oSfnd jhfr ls "kknh djus ds fy, yM+dh dks nku nsus ds fy, fdlh dk gksuk t:jh gSA

10. It further transpires that questions were also put in cross-examination on the point of location and surroundings Patna High Court MA No.312 of 2015 dt.30-03-2018 of the Temple. His replies to such questions raise doubt as to whether the appellant and the respondent had ever gone to Temple or not. Paragraph 48 of his deposition is relevant for this purpose, which is being reproduced herein below:-

"48- eS viuh ftanxh esas x;k "kgj ,d gh ckj x;k gW eSa ugh crk ldrk fd fo'.kqin eafnj x;k ds fdl fgLls esa gSaA og eafnj fdrus jdos es Qsyk gS eS ugh crk ldrkA eS ugh crk ldrk fd eafnj es fdrus ewfrZ;ka gSaA fdrus iqtjkjh gSa eS ;s Hkh ugh crk ldrkA fdlh iqtjkjh dk uke Hkh ugha crk ldrkA"

11. The pujari, who according to the respondent had performed essential customary rights in the Temple for solemnization of marriage was not examined. The respondent in his cross-examination even failed to disclose the name of the said pujari of the Temple.

12. In our view, therefore, the respondent failed to prove, on the basis of evidence adduced at the trial solemnization of a valid marriage according to the customary rights as contemplated under

Section 7 of the Hindu Marriage Act, 1955. It also appears that the customary ceremonies required to be performed were not pleaded in the plaint and as has already been discussed, the evidence of the plaintiff does not make out as to what were the ceremonies performed.

13. The evidence available on record thus do not Patna High Court MA No.312 of 2015 dt.30-03-2018 prove solemnization of valid marriage between the appellant and the respondent. Mere fact that a man and a woman lived as husband and wife is not enough. Concept of Hindu marriage under the Hindu Marriage Act, 1955 is a sacrosanct and the same cannot be contracted by mere consent of the parties.

14. In our view, the findings recorded by the Court below requires interference, the same being not sustainable, resting on no material evidence.

15. Accordingly, the judgment and decree dated 29.06.2015 and 04.07.2015 is set aside. The appeal is allowed.

16. Let the Lower Court's Record be returned to the Court below in a sealed cover.

(Jyoti Saran, J) (Chakradhari Sharan Singh, J) arun/-

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